



File No.: EXP202411621

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on July 30, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 30, 2024, a complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant) against SOLUCIONES DIGITALES CRX S.L. (hereinafter, the respondent) for not having duly addressed the rights of access and limitation of their personal data. The complainant, upon learning that their data had been registered in a solvency file due to a debt amounting to ***AMOUNT.1 euros, sent a letter to the respondent requesting "(...) all the necessary documentation informing me of the reason for such a claim and how this amount was generated, principal, applied interests, commissions, etc., in order to verify that they conform to the original signed contract, of which I also request a copy. (...)", as well as the precautionary removal of their data from such files, without their request receiving the legally established response.

The complainant provides the following documentation:

- Complaint submitted to the Instituto Galego de Consumo, dated April 25, 2024, indicating that the entity DISPON is claiming a debt of ***AMOUNT.1 euros, and that, "(...) after contacting them, at no time have they provided me with the documentation that proves the debt or how it was generated; nor have I been requested to pay the alleged debt in any way. I have also not been notified at any time about the registration of the debt in any solvency files (Asnef Equifax and/or Experian Badexcug). Therefore, I have requested via certified letter, which is attached here, all the necessary information to decide on the legitimacy of the debt and to pay it or, alternatively, dispute it. Likewise, due to the lack of communication regarding their registration in the delinquent files, I request that the annotation in any delinquency file be rectified."
- Exercise of the rights of access and limitation directed to "SOLUCIONES DIGITALES CRX S.L. (DISPON)" dated April 25, 2024.

"Through the solvency files, I have become aware that I am being claimed a debt of ***AMOUNT.1 euros. I declare through this document that I have not received any communication or notification from you indicating this fact. Therefore, I request all the necessary documentation informing me of the reason for such a claim and how this amount was generated, principal, applied interests, commissions, etc., in order to verify that they conform to the original signed contract, of which I also request a copy. In this regard, I would also like to indicate that at the time of formalizing the original contract, I was not warned of the possibility that my personal data could end up in a solvency file, nor was I specified which one in particular; a fact that, had I been aware of it, might have led me to reconsider the formalization of the aforementioned contract.

I indicate that I perceive conditions that exceed what is acceptable as normal conditions, due to the irregularity in its formalization, as it did not offer the minimum explanations of operation and did not pass the incorporation and comprehensibility control typical of this type of contracts before consumers, seriously violating, moreover, the legislation regarding the processing of my personal data.

For the reasons stated, I request that the necessary documentation be sent to me in which the aforementioned is visualized; and that until the situation is clarified, you refrain from maintaining annotations linked to my personal data in any solvency file, violating my rights, as provided by the current Data Protection Law. Thus, I request the precautionary removal of my data while the compliance with the regulations is supervised. (...)"

Attached is a copy of the front and back of the ID card.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The notification of the transfer of the complaint, which was carried out in accordance with the rules

established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on August 30, 2024, as recorded in the acknowledgment of receipt in the file.

There is no record of any response having been submitted to this Agency.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on October 25, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations deemed appropriate within ten working days.

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The responding party, in its written submission to the Agency dated November 11, 2024, states that “- The client has an outstanding debt with our entity since August 28, 2023, the date on which the loan contracted with our entity, numbered ***CONTRACT.1, was not paid.

- On May 16, 2024, we received a letter from the client requesting the signed contract with our entity and the precautionary cancellation of their data in the meantime.

- On May 22, 2024, we responded by email to our client. Specifically, we indicated:

- o That all information is available in their email, to which all information related to the contract has been sent.

- o That we acknowledge receipt of their cancellation request, that it cannot be processed while the loan remains unpaid, and that we will be happy to process the cancellation as soon as they settle their debt.

- o We provided the phone number of the Collections Department to assist them with the procedures.

- o It is indicated that, in the contract signed with the client, in point 13, it is established: “13.1

Communications should be made, if possible, primarily by email.”

- o To date, we have not received a rejection of the email sent, so we understand the successful delivery of the message. Documentation is attached that proves the receipt and sending of the documentation.

- o By mistake, we believed we had responded to the aforementioned request; we checked that, although the documentation was prepared, the document was not sent to the AEPD. We regret the error.”

Provides:

- A list of more than 40 actions by the responding party related to the claimant, where it states

- o “Recipient” the email ***EMAIL.1, which the responding party refers to as that of the claimant,

- o “Sender” the email of the responding party, ***EMAIL.2

- o “Subject,” in all “New penalty for default” except in one of them which indicates “Request for data cancellation received”

- o In the “Date” field, it ranges from January 14, 2024, to July 22, 2024. In “Request for data cancellation received,” the date is noted as “May 22, 2024, 10:24”

- Regarding the Excel list, there is a text, apparently addressed to the claimant, which does not have a date or any documentary proof that allows considering that it has been sent, indicating that

“We do not understand why you request the contractual information related to the services provided when all the information has been sent to the email address you provided in the application form, prior to the contracting, to which a complete copy of all documentation related to the services provided has been sent.

At the time of disbursement of the mini loan you contracted with our entity, a copy of the signed contract was sent to you. This contract includes the consequences of defaulting on your debt.

Specifically, it details the inclusion of your debt in the delinquency registry due to non-payment.

We acknowledge receipt of your cancellation request; unfortunately, we cannot process it while the debt remains unpaid.

We will be happy to process the cancellation of the data in the delinquency file in which you are included as soon as the debt you maintain with our entity is settled. (...)"

FOURTH: After examining the written submission presented by the responding party, it is forwarded to the claimant, so that, within ten working days, they may formulate any allegations they deem appropriate, with no response having been submitted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding their obligations, as well as to address complaints filed by a data subject and investigate, as appropriate, the reasons for them. Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have designated a...

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Data protection officer, Article 39 of the GDPR assigns this role the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the respondent for analysis, to respond to this Agency within one month, and to provide evidence of having given the claimant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on October 25, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim submitted was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim to be accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this

Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of the rights of the data subject.

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rights, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

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On the other hand, it should be noted that, in this case, the respondent claims to have replied to the claimant via email—which the claimant himself had indicated during the loan agreement with the respondent—despite the fact that the claimant had exercised his rights through postal communication and had provided a postal address for the sender in the same. In this regard, it is worth recalling that, according to the guidelines of the European Data Protection Committee (EDPC) 01/2022 on the rights of data subjects — Right of access

53. (...) However, if a data subject submits a request using a communication channel provided by the data controller, different from the one indicated as preferable, such request will generally be considered effective, and the data controller must process it accordingly (see the examples below). Data controllers must make all reasonable efforts to ensure that the exercise of the rights of data subjects is facilitated.

In this sense, the respondent did not respond to the request made through the medium used—and therefore indicated—by the applicant when exercising his rights, but instead communicated with him through another medium—email—that the claimant had provided in a different context. This cannot be considered as the data controller having made “all reasonable efforts.”

V

Right to restriction of processing

Article 18 of the GDPR, which regulates the right to restriction of the processing of personal data, states the following:

"1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following conditions is met:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the erasure of the personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of the processing, but the data subject needs them for the formulation, exercise, or defense of claims;
- d) the data subject has objected to the processing pursuant to Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or to protect the rights of another natural or legal person, or for important public interest reasons of the Union or of a particular Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the lifting of that restriction."

It should be noted that the right to restriction of processing enables the claimant to limit the processing of data when the accuracy of the personal data is contested, for a period that allows the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the erasure of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has objected to the processing, while verifying whether the legitimate grounds of the controller prevail over those of the claimant.

VI

Conclusion

Article 4 of the GDPR, Definitions, provides that:

"For the purposes of this Regulation, the following shall be understood as:

- 1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)"

In the case analyzed, from the examination of the documentation provided, it has been established that the claimant exercised the rights of access and restriction before the respondent.

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Regarding the right of access, "(...) how this amount was generated, principal, applied interest, fees, etc., (...)", the entity has not provided any documentary evidence that allows considering that it has responded to the claimant by providing, or justifiably denying, the requested data.

The right of access is the right of data subjects to know what data is being processed by the data controller, the data subject to processing, the purpose of this, the origin of the data, and whether it has been or will be communicated to third parties.

It cannot be accepted that the response that corresponds to be given can manifest itself as a mere administrative procedure, such as the formulation of allegations in the present procedure, initiated precisely for not properly addressing the request in question.

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The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met. In such cases, the recipient of the request is also obliged to require the rectification of the observed deficiencies or, where appropriate, to deny the request with justification, indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be sent to the claimant informing them of the decision taken regarding the exercise of rights has not been provided, it is appropriate to uphold the claim that initiated this procedure concerning the right of access, regulated in Article 15 of the GDPR.

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Regarding the right to limitation, the responding party has indicated that there is an outstanding debt, which it has informed this Agency about during the processing of this procedure, and there is no record that it has been challenged before the competent authorities. The responding party has provided a copy of a text that it claims to have sent by email to the claimant. However, this email does not contain any date or any documentary evidence that would allow it to be considered sent.

The right to limit processing enables the claimant to have the processing of their personal data limited when the accuracy of the personal data is contested, for a period that allows the responsible party to verify its accuracy; when the processing is unlawful and the claimant opposes the deletion of the personal data; when the responsible party no longer needs the personal data for the purposes of processing, but they are necessary for the formulation or defense of claims; or when the claimant has opposed the processing, while verifying whether the legitimate grounds of the responsible party prevail over those of the claimant.

Regarding the veracity of the debt, as well as other financial issues arising from the contractual relationship, it should be noted that it exceeds the jurisdiction of the Spanish Data Protection Agency to resolve the underlying conflict between the parties, nor to make assessments regarding the civil or commercial validity of the contract, the proper provision of the contracted services, or the interpretation of contractual clauses. The determination of legitimacy based on an interpretation of a contract signed between the parties must be sought before the competent administrative or judicial bodies.

Consequently, since no documentary evidence has been provided that allows for the consideration that the claimant has been communicated the attention or motivated denial of the right, it is appropriate to uphold the claim presented concerning the right to limitation regulated in Article 18 of the GDPR.

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In view of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Articles 15 and 18 of the GDPR have been infringed and to urge SOLUCIONES DIGITALES CRX S.L. with NIF B86429362, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested rights or denying them with justification, indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to SOLUCIONES DIGITALES CRX S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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